

Comment for the Study on Section 1201 of Title 17, United States Code

from Peter Hunt

Section 1201 of Title 17 U.S.C was added as part of the Digital Millennium Copyright Act, and currently includes a triennial rulemaking process by which exemptions can be added to section 1201(a)(1), which prohibits circumvention of technological protection measures (TPM).¹ With this rulemaking procedure up for review, The US Copyright Office should consider several changes to section 1201.

The triennial rulemaking need to allow full review and exemption from all of section 1201, not just section 1201(a)(1). Otherwise, numerous potential exemptions become *de facto* illegal because they cannot be properly pursued without violating other parts of section 1201 even if the exemption itself is deemed a legitimate reason for exemption. This reasoning has previously halted attempts at exemption, on the grounds that particular exemptions to section 1201(a)(1), i.e. those involving relating to media which requires multiple parties to connect over the internet, could not feasibly be put in place without implying a necessary violation of section 1201(a)(2)². The regulation and law must be malleable enough to fit the needs of a changing age. Without the ability to modify the surrounding terms of section 1201, the exemption process may become moot for some important pieces of digital media, as exemptions become restricted by other parts of the law. Therefore, the triennial rulemaking process must change to accommodate this fact. Whether or not any decision is made about those forms of media at this time, it should be possible for the reviewing body to implement such exemptions if they deem it appropriate. The ability to exempt those actions falls within the spirit of the modifying

¹ 17 U.S.C § 1201

² Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 80 Fed. Reg. 65,957 (2015)

procedure. If the triennial rulemaking process is intended to consider when an exemption may be necessary, then it should have the capacity to make that determination when called upon, and subsequently institute those exemptions.

The triennial rulemaking process needs to allow the establishment of permanent exemptions and modifications, not just temporary exemptions which need to be reviewed *de novo*. Doing otherwise can squander valuable time in review. While some changes may still be submitted or ruled as only temporary exemptions, to remain in place for three years until the next triennial rulemaking proceeding, rulemakers and recommenders should have the ability to consider establishing, through a preponderance of the evidence, permanent exemptions, which will last until successfully challenged. This streamlines the rulemaking process and simplifies the regulatory process without damaging the essential malleability necessary to handle the range of potential exemptions, and would otherwise not alter the review process for any submitted exemptions.

Some specific exemptions should also be considered for a permanent place within section 1201. First, any action done by a library, archive, or educational institution for the purpose of preserving a work as close to its original form as possible should be exempt, even if this means distributing circumvention software across multiple devices, or creating duplicate servers to stand in for those no longer supported by the copyright holders. This is because electronic multiplayer games, as a medium, are different from something such as the text of a book or a copy of a film. Their interactivity defines them. The interaction between multiple human parts is a fundamental aspect of that work as an expressive form, and prohibiting that interaction on account of the inability to distribute tools which enable multiple participants changes the

essential nature of the cultural artefact. This is not merely a matter of practicality or compliance -- removing the multi-participant component of such online games actively destroys an irreplaceable part of what it means to be that kind of game. Without a rule allowing, at the very least, archival institutions to establish these kind of networks, the Copyright Office would risk condemning an entire category of cultural experience to historical oblivion.

Second, actions done by consumers solely for the purpose of accessing a work for criticism or cultural review should be exempt from section 1201(a)(1). This exemption is necessary because the medium is too broad and can flee too quickly into the proverbial ether to rely entirely on the precision and care of academic and semi-academic institutions. Cultural understanding and criticism should not be burdened and shackled by an inability to access the very things that such criticism attempts to address.

The United States Copyright Office should therefore consider three changes to the triennial rulemaking process outline in section 1201. First, the rulemaking body should have the capacity to allow exemptions for all subsections of section 1201, not just section 1201(a)(1), so that rulemaking may adapt to the technical and social complexities of the digital environment. Second, it should be possible to establish permanent or otherwise indefinite exemptions, which would stand until sufficiently challenged, rather than relying on new arguments *de novo* every three years. Third, there should be two new exceptions, which allow both consumers and preservationists to better engage with digital media while remaining within the confines of the law's intent.